



POLICE DEPARTMENT

November 6, 2014

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Pablo Valentin
Tax Registry No. 931357
34 Precinct
Disciplinary Case No. 2012-8198

The above-named member of the Department appeared before me on September 16, 2014, charged with the following:

1. Said Police Officer Pablo Valentin, while assigned to the 34th Precinct, on or about and between August 1, 2012 and August 6, 2012, did fail and neglect to safeguard his Department issued shield, as required, resulting in its loss.

P.G. 203-05, Page 2, Paragraph 13 – PERFORMANCE ON DUTY – GENERAL
GENERAL REGULATIONS

2. Said Police Officer Pablo Valentin, while assigned to the 34th Precinct, on or about and between August 1, 2012 and August 6, 2012, did fail and neglect to carry his Department-issued shield, as required.

P.G. 204-15, Page 1, Paragraph 3 SHIELDS/NAMEPLATES/IDENTIFICATION
CARDS UNIFORMS AND EQUIPMENT

3. Said Police Officer Pablo Valentin, while assigned to the 34th Precinct, on or about and between August 28, 2012 and September 27, 2012, having made three (3) domestic violence arrests involving visible physical injuries, did fail and neglect to upload all digital photographs taken of said injuries into the Domestic Violence Digital Photo Database, as required.

P.G. 208-39, Page 3, Paragraph 9 – REVISION TO PATROL GUIDE 208-39,
"FAMILY OFFENSES/DOMESTIC VIOLENCE
(PHOTOGRAPHING VISIBLE INJURIES/
DAMAGED PROPERTY)" INTERIM ORDER
#17, ISSUED 05/20/08

4. Said Police Officer Pablo Valentin, while assigned to the 34th Precinct, on or about August 17, 2012, while assigned to perform a tour from 0705 hours to 1540 hours, left work without permission or police necessity at 1530 hours.

P.G. 203-05, Page 1, Paragraph 2 PERFORMANCE ON DUTY – GENERAL
GENERAL REGULATIONS

5. Said Police Officer Pablo Valentin, while assigned to the 34th Precinct, on or about August 17, 2012, wrongfully and without just cause made inaccurate entries in the “Return Roll Call” and his Activity Log that he left work at the end of his scheduled tour at 1540 hours when, in fact, he left work at 1530 hours.

P.G. 203-05, Page 1, Paragraph 4 PERFORMANCE ON DUTY - GENERAL
GENERAL REGULATIONS

P.G. 212-08, Page 1, Paragraph 1 ACTIVITY LOGS
COMMAND OPERATIONS

The Department was represented by Samuel Yee, Esq., Department Advocate’s Office. Respondent was represented by John Tynan, Esq.

The Department dismissed Specification Nos. 4 and 5. Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner’s review.

DECISION

Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

Failure to Safeguard Shield

Respondent testified that was assigned to the 34 Precinct in August 2012. Respondent’s recollection was that he had his shield during his August 1, 2012 tour at One Police Plaza, but realized that it was no longer in his possession when he returned to work on August 6, 2012. During those intervening days, Respondent violated the Patrol Guide by not carrying his shield during his regular days off and while assigned to barrier

detail. While at work on August 6, Respondent realized his shield was missing. When he was unable to locate it, he notified his supervisor and filled out the appropriate paperwork reporting the loss. Respondent was eventually issued a new Department shield. Respondent later discovered that he had packed the shield in a bag with his uniforms.

Failure to Upload Photos to Domestic Violence Database

On August 28, 2012 Respondent arrested three individuals on domestic abuse charges involving cross-complaints between two brothers and their father. Respondent observed that the older brother had injuries on his back and, consistent with protocol in such matters, took photographs and filled out domestic violence reports. Respondent, however, did not upload the photos, as is the protocol, to the domestic violence database. Respondent claims he received minimal training on how to upload pictures and could not do it. Respondent subsequently learned that the Assistant District Attorney assigned this particular case dismissed the charges against the father and younger brother. The photographs Respondent had taken were of injuries found on the older brother who was now the charged party. Respondent did not seek further help in this matter but rather concluded there was no need to upload the photographs because the criminal charges against the younger brother and father had been dropped.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 1, 2002. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum and summarized below.

The Department is recommending a loss of 20 vacation days for the misconduct charged in the three specifications. Respondent asserts that this penalty is excessive because the violations had little impact on the Department and on the prosecution of the domestic violence case. Respondent argues that a reduced penalty of 5 vacation days would be more appropriate. I disagree.

First, Respondent's disciplinary history does not support a penalty of less than 20 vacation days. Respondent's personnel records reveals that he has been the subject of two prior disciplinary actions resulting in penalties. In 2008, he forfeited 29 pre-trial suspension days and was [REDACTED] after pleading guilty to engaging in a [REDACTED] and failing to request the response of a patrol supervisor to the scene. In 2011, he forfeited 20 vacation days and was [REDACTED] pleading guilty to engaging in a [REDACTED] and failing to notify the Department of his change of address.

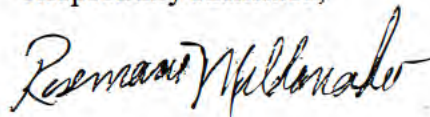
Second, the Department's proposed penalty is more consistent with related precedent. The loss of a shield alone can result in a command discipline and the forfeiture of up to 10 vacation days. See Patrol Guide 206 Aggravating circumstances or, as in this case, additional charges can lead to increased penalties. As cited by the Department, in Disciplinary Case No. 7385-2012 (signed on 9/10/12), a 21-year member who had no prior disciplinary record negotiated a penalty of 15 vacation days for failing to safeguard his shield resulting in its loss. In this case, Respondent not only lost his shield, he also failed to follow Patrol Guide procedures and provide the District Attorney's Office with information that could have been relevant to the prosecution of a domestic violence case. It was not within Respondent's discretion to ignore specific Patrol Guide procedures or to not seek assistance when he failed to understand how to proceed.

Therefore, consistent with the penalties that have been imposed for the misconduct that Respondent has pleaded guilty to having committed, it is recommended that Respondent forfeit 20 vacation days.

APPROVED

JAN 29 2013
WILLIAM J. BRAYTON
POLICE COMMISSIONER

Respectfully submitted,



Rosemarie Maldonado

Deputy Commissioner Trial

POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER PABLO VALENTIN
TAX REGISTRY NO. 931357
DISCIPLINARY CASE NO. 2012-8198

Respondent was appointed to the Department on July 1, 2002. His last three annual evaluations were as follows: he received an overall rating of 4.0 "Highly Competent" in 2013, a 3.0 "Competent" in 2012, and a 4.0 "Highly Competent" in 2011.

[REDACTED]
[REDACTED]
[REDACTED] On March 5, 2008, he forfeited 29 suspension days and [REDACTED] for engaging in a [REDACTED] and failing to request the response of a patrol supervisor. On May 3, 2011, he forfeited 20 vacation days and [REDACTED] for engaging in a [REDACTED] and failing to notify the Department of his change of address.

On October 31, 2006, he was placed on Level III performance monitoring as a result of his poor performance. Between July 3, 2006 and December 31, 2006, he was on suspension/modified assignment.

For your consideration.



Rosemarie Maldonado
Deputy Commissioner Trials